

Chapter 7

Countering terrorism

Miss Blum always said she didn't believe in security anyway. 'Least of all from *those* people, they come when they feel like it, out of a clear blue sky in the middle of the night.'

Heinrich Böll, *The Safety Net* (1979)

So what is to be done about terrorism? Are there better and worse ways of responding to it? Certainly there is a multiplicity of possible responses, ranging from mild regulation to full-blooded military repression. What are the possible benefits, and what are the likely costs? Is it possible that sometimes the cure may be worse than the disease? In particular, as Laqueur asked, 'can a democratic society subdue terrorism without surrendering the values central to the system?'

Antiterrorist, counterterrorist?

Probably the biggest hazard inherent in reactions to terrorism is the impulse towards imitation. For many years, it was common to draw a clear distinction between 'antiterrorist' measures and 'counterterrorism'. The former described every lawful step a state might take, from special legislation to martial law; the latter meant the adoption of terrorist methods—such as assassination and indiscriminate reprisals—by the state's own forces. This distinction is still sometimes maintained, but more often it has been eroded. Whether this signals an adjustment of the concepts themselves is not clear; as elsewhere, the main outcome seems to be another blurring of definition. 'Counterterrorism' now clearly predominates. The USA established a National Counterterrorism Office

in 2004, and the UK an Office for Security and Counter Terrorism after the July 2005 attacks. Although some writers on terrorism do draw a distinction, they do not agree on what the terms signify (one says that ‘in contrast to counterterrorist measures, antiterrorist steps are largely defensive in nature’; others hold that ‘counter terrorism is a passive response’, while antiterrorism ‘is an aggressive and potent tool of government’). Usually, though, the two terms are now used interchangeably, without any explicit or implied distinction. Most worryingly, perhaps, the British government also uses both terms in its legislation. But despite this apparent unconcern, we need to keep in focus the sorts of issues about the degeneration of liberal-democratic norms implicit in phrases like ‘resort to’ or ‘descent into counterterrorism’; for a variety of reasons, states can all too easily go too far.

Threats and responses

In thinking about appropriate ways of reacting to terror, it remains important to keep in mind the distinction between war-related terror and terrorism as an independent strategy. On a dispassionate assessment of the actual threat posed by ‘pure’ terrorism, the most appropriate reaction might well be to ignore it altogether. In statistical terms, it is a vastly less substantial danger than road traffic accidents, and very much less amenable to preventive action. And even after 9/11, it is not evident that it fits the American mantra of ‘clear and present danger’—a criterion specifically designed to inhibit the tendency of governments to exaggerate threats. There is no visible terrorist force ready to strike. Does this mean that, as Tony Blair said, the old ‘rules of the game’ are no longer sustainable in face of a new kind of threat?

For democracies, action against terrorism is not at all simple. The responses available to some kinds of regimes are not part of the democratic repertoire. Walter Laqueur cites the example of Iran after 1979, where the government ‘killed without discrimination, extracted information by torture, refused to extend medical help to injured terrorists. And it broke the back of the terrorist movement.’ Whether or not this is a true case of cause and effect, it is clearly not an option for the ‘liberal state’, whose remedies have to be more careful, time-consuming, burdensome, and expensive. Heinrich Böll’s *The Safety Net* (*Fürsorgliche Belagerung*), written at the height of the left-wing terrorist campaign in West Germany, sets us inside the elaborate kind of security system that could follow—Miss Blum’s scepticism notwithstanding—and raises sharp

questions about its larger implications.

It has been argued, for instance by Robert Goodin, that the best public response to terrorism is simply ‘fearlessness’. Just going to work or using public transport after an attack such as 7/7 is the most effective thing ordinary people can do. Richard English has pointed out that amid the public alarms in the wake of 9/11 people lost sight of their own experience of terrorism—they had learned to live with it for many years. But politicians have shown little inclination to preach equanimity: rather the reverse. In political terms, the option of ignoring terrorism, however rational, is unprofitable. Terrorism operates precisely by playing on the deep-seated public need for, and anxiety about, security of life and property. As a threat to the survival of the state, terrorism is implausible if not absurd but as a challenge to the state’s monopoly of force and the broader sense of public security, it is acutely effective. It is no coincidence that it has flourished most spectacularly in a modern Western world which since the 19th century has achieved an unprecedented level of public security, together with dependence on an extremely complex infrastructure. The pressure of public anxiety is inevitably greatest in democratic societies, where various public representatives, including a free and professionally alarmist media, will certainly demand action even if ordinary people do not. But being seen to ‘do something’ is not easy when the opponent is invisible. Governments soon develop, as Adam Roberts says, ‘a powerful thirst for intelligence’ which can quickly lead to bending or breaking legal constraints in the search for information. It can lead to increased police powers, detention without trial, far-reaching changes in legal procedures, and the use of torture—or its milder relation ‘inhuman and degrading treatment’.

Currently, each novel terrorist tactic seems to trigger an official reaction hinting at panic. The truck attack in Nice on Bastille Day 2016 was followed by the cancellation of many local festivals and an extended state of emergency. After the November 2015 Paris attacks, the Belgian government shut down the city of Brussels for four days, at the cost of immense public inconvenience and at least €300 million. The chaotic response of security staff to the 2017 attack at Westminster, and the lockdown of parliament for many hours, indicate that the terrorist threat has also corroded the traditional restraint of the British police.

The increase in terrorist action by British-born Islamists has triggered a wide-ranging attempt to identify a process of ‘radicalization’, and intervene to prevent

‘vulnerable’ individuals being ‘drawn into terrorism’. Since 2015 the social agencies yoked into the Prevent programme have included schools and universities as well as prisons and hospitals. Action on this scale may be perilous to the fundamental principles of a liberal society, quickly producing a chilling effect on public discussion of the issues involved. At least 80 per cent of reports of potential terrorists have proved unfounded—but all have involved police investigation. This is a very blunt instrument whose potential to generate the opposite of its intended effect is clear enough.

Proportionality and aptness

What, if any, limits should be set to action against terrorism? The BBC journalist David Jessel, making a *Heart of the Matter* report in 1985, noted that even ‘keeping a sense of proportion in the face of terrorist atrocity may seem a counsel of appeasement. What moral constraint, after all, binds the terrorist?’ If there are to be limits, they will reflect the underlying ethos of the society that is under threat or attack. For those societies that think of themselves as the bearers of ‘Western civilization’, Jessel suggested that the principle of proportionality, as prescribed by St Thomas Aquinas, ‘stands up remarkably well to a modern view of justice and expediency’. The reaction of a state should be in proportion to the wound inflicted on it; such action should not merely add to the volume of violence; and the outcome of any counterattack should not lead to a greater injustice than that which was the original provocation.

In the case of conventional war, proportionality is (at least in theory) calculable. Even there, though, mistakes have often been made. Military forces are difficult to measure exactly, and political intentions are all too easy to misread. Clausewitz made the apparently simple point that ‘the first of all strategic questions and the most comprehensive’ is for decision-makers to be clear about what a situation *is* and what it *is not*. Any illusion of simplicity dissolves when terrorism is at issue, since we are driven back to the fundamental problem of defining the nature of terrorism and the threat it represents. It is *not* an invasion; can it in any real sense be subjected to military action?

The clarity demanded by Clausewitz is very hard to achieve. A member of the Rand Corporation, Jeffrey Simon, writing (unofficially) in 1987, urged Americans to stand back and ask fundamental questions—such as whether vital

US interests were ‘really threatened by international terrorism’. Simon noted that ‘for years Washington has allowed the natural emotional abhorrence of terrorism to supplant a rational evaluation of the terrorist danger’. The debate over military responses to terrorism was ‘fuelled by the American public’s and government’s growing frustration and anger toward the new enemy’, and the possibility that ‘there may be no solution to this one’—or only solutions lying beyond US control—had simply not been considered.

Yet, as he warned, the continuing expectation that terrorism can be beaten raised the stakes in the conflict and placed American foreign policy at further risk. The problem was that each terrorist attack turned into ‘an assault on national pride and honour’. The distinction between national honour and national security became blurred. Persistent evidence of the tendency of military reactions to terrorism to further a cycle of violence was ignored, as was the fact that ‘terrorists can reverse any counterterrorist “victories” with one well-placed bomb’. Simon urged that the USA should tone down the national reaction, and accept terrorism as a fact of life rather than diverting valuable resources to an endless conflict.

That, of course, was long before the destruction of the Twin Towers in New York. The assertion that 9/11 had ‘changed everything’ swept all before it, and swept aside such arguments as these. It offered perhaps the ultimate test of the military response. The USA, on behalf of civilization, declared war not just on existing terrorist organizations but on terrorism itself. Never—even in July 1914—had the aptness of military action been more confidently asserted. The dizzying reach of this commitment was confirmed in President Bush’s Thanksgiving address to the 101st Division two months later:

America has a message for the nations of the world. If you harbour terrorists, you are terrorists ... And you will be held accountable. We will not be secure as a nation until all of these threats are defeated. Across the world, and across the years, we will fight these evil ones.

To some degree no doubt, this rhetoric was a necessary palliative for a traumatized nation, but coming amid a fierce and—in terms of international law—illegal assault on the Taliban regime in Afghanistan, it had sobering implications. And within six months, the USA launched a still more far-reaching assault on the regime of Saddam Hussein in Iraq, which had no apparent connection with al-Qaida.

The ‘global war on terror’ was launched under the justification of self-defence, which to many people seemed to be self-evidently invoked by the attack. The advocates of military action were not required to demonstrate that 9/11 was the opening of a new kind of conflict, rather than an old-style terrorist act on a larger scale. The idea that terrorist organizations could be located and destroyed in the manner of conventional targets was hardly subjected to any public evaluation at the outset. (Rare objections came from the distinguished military historian Sir Michael Howard, who urged more painstaking, less cathartic methods, and the Monty Python star Terry Jones, who first raised the question whether it was possible to make war on an abstract noun.) The USA had already established a firm pattern of armed reaction: most recently illustrated in President Clinton’s ‘Operation Infinite Reach’ of August 1998 in retaliation for the truck-bombing of US embassies in Nairobi and Dar-es-Salaam in which 259 people (twelve of them Americans) were killed. Cruise missiles were launched at targets in Afghanistan stated to be training camps run by Osama bin Laden, and a chemical warfare plant in Sudan. ‘Our target was terror’, Clinton announced. Yet here as elsewhere, the choice of targets was disputable; the strike on the Al-Shifa pharmaceutical factory in Khartoum, in particular, was a costly error.

Similar issues have arisen over the increasing use of ‘drones’ (unmanned aerial vehicles, or UAVs) against terrorists in Pakistan, Somalia, and elsewhere in the last decade. President Obama—who authorized more drone strikes in his first year than George W. Bush did in his whole presidency—tried to disarm opposition to these by saying ‘simply put, they have saved lives’. But critics hold that they are neither effective nor legal—the claim that precision UAV strikes have ‘decimated’ some terrorist organizations is denied by their continued activity, while it is evident that civilian casualties (in strikes on wedding parties or funerals) and breaches of sovereignty levy a high political cost. General Stanley McChrystal, the former head of counterinsurgency strategy in Afghanistan, bluntly declared in 2013 that drones ‘are hated on a visceral level’ and had fuelled an intensity of resentment that Americans failed to grasp. Thousands of ‘terrorists’ have been killed, but civilian deaths may have been played down by the contentious official definition of ‘civilian’. The argument that drone strikes have generated more terrorists than they have killed may not be conclusive, but it is troubling.

Even without intelligence mistakes, or ‘collateral damage’, the distinction between retaliation, reprisal, and mere revenge is not easy to maintain when an

enemy cannot be identified or located with exactness; and the utility of indirect retaliation has always been doubtful. Adam Roberts has highlighted the long tradition of scepticism about punitive raids as reprisal for terrorism, noting that since attacks on leaders ‘proved spectacularly wrong in Tsarist Russia ... it would be deeply ironic if it were to be reincarnated in the name of counterterrorism’. The invasion of Iraq in 2003 turned into perhaps the most spectacularly deadly of all such strategic mistakes. By the time President Bush admitted that there was ‘no evidence that Iraq was involved in the September 11 attacks’, the coalition was fighting a protracted internal war in which over 100,000 Iraqi civilians would die. It was hard to see either proportionality or aptness in this, since the war became a breeding ground for new, more loose-knit terrorist groups. A decade after 9/11, many agencies still seemingly believed that terrorist networks could be taken down by removal of their ‘masterminds’, and that smart weapons could achieve this without counterproductive political effects.

Strategic choices

The spectrum of policy choice starts, perhaps, from the option of reading terrorism as a symptom of social injustice and responding by reform. In some cases, such as ethnic separatist movements, straightforward concessions may in principle remove the cause of violence. The ‘root causes’ (a phrase mocked by neo-conservatives after 9/11) of other social problems are less straightforward, and their relation to terrorist action less direct. But in all cases, the option of political adaptation is open to the potent objection that it is a concession to—and so an encouragement of—violence. As a rule, therefore, reform is offered (if at all) as a reward for an explicit abandonment of violence, a confession of error, and a demonstrative embrace of democratic principles. The balance here between which should come first can be so fine—as it was for many years in Northern Ireland—that the political (‘peace’) process is effectively paralysed. If so, in the meantime antiterrorist action will be taken to hold the ring, to limit violence to what a British minister once unguardedly called ‘an acceptable level’. Where reform is not on offer, or terrorism is read as criminality, there may be a more determined effort to extirpate it, involving systematic offensive measures, and even what may be described as ‘retaliation’ against communities held to be sheltering terrorists. Where terrorism is read as a manifestation of madness or evil, that effort may be full-blooded.

Whatever the overall political intention, antiterrorist action needs to be more discriminating and calibrated than terrorist action. To help in charting the range of responses available, whether for anti- or counterterrorist policy, we may draw a basic distinction between passive and active measures. On the whole, passive measures are shaped by the nature of terrorist acts—airport security is a response to hijacking and sabotage of aircraft, defensive steps labelled ‘target hardening’ a response to bomb attacks, the ‘safety net’ of individual security measures a response to kidnapping, and so on. They are an effort to shrink the windows of opportunity available to terrorists. They are also a tacit admission of the impossibility of predicting terrorist action. Active measures may try to address this by engagement with terrorist groups with the aim of thwarting or destroying them. The only chance of success in this direction lies in an effective intelligence system, using techniques such as infiltration and surveillance to acquire accurate information. Modern states typically possess extensive and expensive intelligence services, but their record of success in providing this kind of information is patchy at best. The 9/11 attacks happened in a country which spent colossal sums on agencies like the FBI and CIA, yet failed to establish effective countermeasures, despite the warning delivered by the bomb attack on the World Trade Center in 1993, and the definite identification of Osama bin Laden’s organization as a major threat to national security (bin Laden was on the FBI Ten Most Wanted list for years). Typically, as it emerged, a July 2001 report by an FBI agent in Arizona highlighting the number of Middle Eastern men taking flying lessons and a keen interest in airport security was simply shelved by his superiors.

When carefully developed intelligence is coupled with ruthlessness in action, as in postwar Israel, the result may be the accurate targeting of leaders of terrorist organizations. Yet even after this has been done repeatedly, it has not succeeded in significantly reducing the level of terrorist attacks. Its achievement is usually more speculative—it has contained or prevented other terrorist actions that would have occurred. As with all intelligence operations, exact evaluation of such claims is not possible. Nor indeed is it possible to dispute the larger promise advanced by successive Israeli prime ministers that retaliation will not merely contain but defeat terrorism. The fieriest sermon on this text is still Netanyahu’s book *Terrorism: How the West Can Win* (1986), whose conflation of terrorism and terrorist groups was eventually echoed in the 2001 ‘war against terrorism’ proclaimed by President Bush—and amplified with alacrity by Ariel Sharon in Israel.

The government of Israel maintained that its military assaults on West Bank towns like Bethlehem, Nablus, and Jenin (under the seductive title ‘Operation Protective Shield’) would indeed curb the danger of suicide attacks on its people. (See [Figure 10](#).) Its people largely agreed; few disputed the notion of targeting ‘the infrastructure of terrorism’—though Uri Avneri (co-founder of the peace group Gush Shalom) denounced it as nonsensical—‘the “terror infrastructure” exists in the souls of millions of Palestinians ...’—and the view of an IDF soldier that ‘I’m pretty sure that all the suicide bombers inside Israel have blown themselves up, and the ones still in the territories are either being killed or being caught’ was followed the next day by yet another suicide bombing in Haifa.



10. Attacking the ‘infrastructure of terrorism’ in Gaza: an Israeli military incursion at Beit Hanoun, 15 December 2001.

The most spectacular act of retaliation, the assassination of Osama bin Laden by US special forces in the Punjab garrison town of Abbottabad on 1 May 2011—after nearly ten years of the most expensive manhunt in history—raised all these questions. The long delay in finding him drew as much comment as the manner of his death. Though the US at first claimed he had been killed resisting arrest, it

later became clear that he had been unarmed. If this was ‘justice’, as President Obama asserted, it was far removed from due process. Bin Laden was killed not because he could not be captured, but because (as with the Guantanamo detainees) it would have been impossible to convict him in court. This told its own story, as did the decision to consign his corpse to the seabed—dismaying to many leading Islamic authorities—to prevent his grave becoming a ‘terrorist shrine’. Was the world ‘a safer place’ as a result, as Barack Obama also declared? This was debatable. Bearing in mind bin Laden’s already circumscribed activity, and the potentially hostile public reaction to the breach of Pakistani sovereignty, this may be another case when (as Jeffrey Simon noted) national security took second place to national honour.

Domestic policy

A further key distinction should be made between policies that are under the control of individual states, and those which depend on (often problematic) international cooperation. The former have a much higher chance of being put into effect, but that effect may be limited: they may literally run out of road at the state’s borders. Policies available to states fall into three categories: laws, forces, and operational methods.

States in general, even—perhaps especially—democracies, have little difficulty in establishing the basic elements of antiterrorist action. Although governments are nowadays more likely to come under public pressure to ‘do something’ rather than to take a minimalist line, they possess some freedom in deciding whether to adopt an essentially legal approach or to step outside the law. While it is rare to go direct to action like Israel’s policy of assassinating those it identifies as terrorists, the option of modifying the law is a tempting one. Special emergency laws, for instance, which may restrict or abrogate civil liberties in order to provide the security forces with greater powers of surveillance, search, or detention of suspects, have often been rapidly enacted in the wake of terrorist attacks, without much parliamentary or public opposition.

Special powers may or may not need special forces to implement them. Terrorist campaigns that specifically target the police or the political section of the police (like the IRA versus the G Division of the Dublin Metropolitan Police in 1919) may shake their morale sufficiently to impel states either to fall back on military

forces—with possibly disagreeable political implications—or to set up what is sometimes called a ‘third force’. But the creation of special security forces is quite a hazardous policy, for democracies at least. Great Britain, for example, has never established a third force within the UK, though it came very close with the ‘Black and Tans’ in Ireland in 1920–1 (a force which arguably did more than anything else to undermine the British effort to keep Ireland within the UK). This bruising experience, followed by a still more dubious initiative in Palestine with the establishment of ‘Special Night Squads’ under the leadership of Orde Wingate to pre-empt the actions of Arab ‘terrorist’ groups during the rebellion of 1936–9, and again—briefly and embarrassingly—against Zionist terrorists after 1945, may have persuaded Britain that the dangers outweigh the advantages. Germany has been cautious in keeping its specialist antiterrorist force GSG9 (*Grenzschutzgruppe 9*; Border Protection Group 9 of the Federal Police) as part of the panoply of civil policing—albeit with the distinct ‘border guard police’. Israel, on the other hand, has established special military forces (which have acquired an unenviable reputation for ruthless pre-emptive or punitive action with a high risk of ‘collateral damage’ to innocent people who, either through chance or through military intelligence mistakes, have found themselves in the wrong place at the wrong time).

Whether these forces have contained or provoked terrorist action is a contentious issue. The criteria of success can, indeed, be drawn up in significantly different ways. For instance, the action of the US Delta Force in seizing an Egyptian airliner on Italian soil after the *Achille Lauro* hijacking in 1985 has been portrayed as a success, although it might well have triggered a serious international incident by violating Italian sovereignty. The more insidious danger of such forces, however, is likely to arise when they are deployed for an extended period in a quasi-police role. In a situation of protracted domestic conflict such as Northern Ireland, the capacity of a semi-clandestine force like the Special Air Service (SAS)—or the still more shadowy ‘Military Reaction Force’—to set the policy agenda is likely to increase. Such forces will inevitably stray beyond strict legality from time to time, and if this becomes a persistent tendency it will eventually subvert the key principles of liberal society: above all, perhaps, due process.

Still, if there are hazards to the use of special forces, there are problems in mounting certain kinds of antiterrorist operations without them. The problems are produced by the inherent ambiguity of the terrorist strategy, and the fact that

it usually operates in a complex political environment. In the grey zone between politics and warfare which terrorism inhabits, it is always likely that actions will lie outside the experience and repertoire of either the police or the army, and will need civil–military coordination of a kind that has never been easy to achieve. The precise timing and technique, for instance, of a wide range of operations from searches and arrests to the storming of buildings or hijacked aircraft, is likely to be critical, and the political implications of mistakes may be far-reaching. The degree of training needed is not likely to be achieved on an ad hoc basis, as is only too obvious from the chequered (but generally depressing) history of airline security, a low-prestige service, dangerously underfunded, especially in the USA, and especially in comparison with the exotic intelligence agencies. As one commentator has pointed out, an unsettling aspect of the 9/11 attacks was that the hijackers did not ‘slip past’ some incompetent individuals: they passed through checkpoints in four different airports and no inspector noticed what they were carrying.

The international difficulty

It has always been clear that antiterrorist action needed to be international as well as domestic if it were to be effective. (Conrad’s *Secret Agent*, Verloc, was employed on just such a design, on the part of an illiberal central European state, to lever Britain into an antiterrorist coalition.) More recently, one of the more prolific writers on terrorism held that it was ‘the failure of the international community to fully recognize terrorism as criminal behaviour’ that had ‘encouraged the growth of terrorist activity over the last two decades’. But the whole problem was that no usable common definition of terrorism, least of all ‘as criminal behaviour’, could be reached. After the assassination of King Alexander of Yugoslavia, the League of Nations Council adopted a resolution (10 December 1934) that ‘it is the duty of every state neither to encourage nor tolerate on its territory any terrorist activity with a political purpose’; states should do all in their power to prevent and repress terrorist acts, and to assist other states to do so. For the next three years, a League committee laboured to draft international conventions for the prevention and punishment of terrorism. It defined ‘acts of terrorism’ (carefully avoiding the generic term ‘terrorism’ in the hope of skirting the thorny issue of political motivation) as ‘directed to the overthrow of a government or an interruption in the working of public services or a disturbance in international relations, by the use of violence or by the creation of a state of terror’.

The convention's deployment of neutral terminology, however, failed: individual states (notably Great Britain) still resisted committing themselves to its possible implications. The British Home Office found the committee's three terrorist objectives rather ill-sorted—'between two appalling catastrophes is sandwiched an interruption of public services, which many people would consider to be of a much lower order of magnitude, and in many cases quite well justified'. Here as ever was the rub: one man's legitimate protest was another's revolutionary crime. 'The crux of the position', the Home Office said, 'is that the Convention would place us under an international obligation to punish sympathizers here who encourage or help oppressed minorities abroad to secure political liberty, if other than purely peaceable methods (which would probably be useless) are employed.'

Since the 1930s, international cooperation has advanced by quite small stages, always limited by the absence of consensus on the justifications for political violence. In October 1970, the UN General Assembly resolved that it was the duty of states 'to refrain from organizing, instigating, assisting or participating in acts of civil strife or terrorist acts', but subsequent committees established to define terrorism and recommend methods of preventing it failed to do either. Debate has persistently been diverted towards political analyses—of underlying causes, and of the claims of various groups to be excluded from the terrorist category. From one perspective, this shows that 'the General Assembly has clearly elevated the right to self-determination above human life'; from another, it reflects the belief that freedom is worth dying for. Whatever else may have changed after 9/11, this tension did not—as was made clear by President Assad of Syria when Tony Blair tried to enlist him for the international coalition against terrorism in October 2001: 'We differentiate between resistance and terrorism. Resistance is a social, religious and legal right that is safeguarded by UN resolutions ... Can anyone accuse de Gaulle of being a terrorist?' Assad added a general caveat against the idea of a war on terror: 'Terrorism works as a network. It does not have a certain head, either as a person or in terms of an organization.' This unpalatable analysis may, however, have been too mystical for Westerners to absorb. ([Box 7.](#))

Box 7

We know that terrorism is an international problem that requires the

concerted efforts of all free nations. Just as there is collaboration among those who engage in terrorism, so there must be cooperation among those who are its actual and potential targets. An essential component of our strategy, therefore, is greater cooperation among the democratic nations and all others who share our hopes for the future. We have achieved some successes. But too often countries are inhibited by fear of losing commercial opportunities or fear of provoking the bully. The time has come for nations that truly seek an end to terrorism to join together, in whatever forums, to take the necessary steps.

US Secretary of State George Shultz, 1986

The most successful international measures have focused on particular offences, like attacks on ‘internationally protected persons’—primarily diplomats—and hostage-taking; and on the protection of nuclear material and the prevention of transfer of terrorist finances. But larger frameworks have remained hard to construct, and key organizations like Interpol (which is barred by its constitution from investigating political matters) remain limited in their capacity. (Intelligence-sharing has also been difficult, even regionally; only in 2016 was a European Counter Terrorism Centre set up.) The ideal mechanism for international action would be a single global statute. But in 2001, only six European states had specific antiterrorist laws, and these were quite varied in their terms. In the absence of a single legal framework, the viability of international action devolves to a great extent on the process of extradition—on the principle *aut dedere aut judicare*—and this remains fraught with complications.

Though there have been significant regional steps, in particular the 1977 European Convention for the Suppression of Terrorism, the process of ratifying this agreement has been erratic (Ireland did not adopt it until 1986, for instance); and it still baulked at the basic task of defining a terrorist offence. Likewise the 2005 Council of Europe Convention on the Prevention of Terrorism, while introducing a controversial new offence of incitement (‘public provocation’) to commit a terrorist offence, simply defined such offences as those listed in the twelve existing international conventions on terrorism. There are grounds for qualified optimism in the case of Ireland, whose judges (notably in the case of Dominic McGlinchey, whose appeal against extradition to Northern Ireland on a

murder indictment was turned down in 1982) paved the way for adopting the 1977 convention by substantially narrowing the previously capacious view of ‘political offences’. So although some recent British extradition requests have failed, these have been on technical, ‘strict construction’ grounds—wrongly drawn up affidavits. At the same time, the French refusal to extradite Abu Daoud, wanted in both Germany and Israel for his part in the Munich massacre, to either country in 1977 stands as a warning of the capriciousness of *raison d’état*.

State sponsorship

The US State Department specifies four key elements of US counterterrorism policy:

First, make no concessions to terrorists and strike no deals; Second, bring terrorists to justice for their crimes; Third, isolate and apply pressure to states that sponsor terrorism to force them to change their behavior; and Fourth, bolster the counterterrorism capabilities of those countries that work with the US and require assistance.

The high profile of state-sponsored terrorism in the official US analysis has always been striking. As against this, though, it is rare to find any attempt to provide precise assessment either of its contribution to the total volume of terrorist activity, or of the role of sanctuaries in the growth of terrorist organizations. Before 1989, it was common to see such broad-brush estimates as, for instance, that ‘80 per cent of terrorist groups in the world are at least superficially Marxist ... and claim the right to support from the Soviet Union’. The sudden and unexpected disappearance of the Evil Empire seems to have impelled the State Department to allow (in 2001) that ‘state sponsorship has decreased over the last several decades’, but again nothing like a quantitative estimate has been offered. Later in the decade, it maintained that state support ‘compounds’ the threat of terrorist organizations, and even that it was ‘critical’—though it immediately diluted this with the less stringent suggestion that without state sponsorship terrorist groups would have ‘greater difficulty’ in securing funds, weapons, and so on.

A world in which 80 per cent of terrorists were not Marxists but Muslims might present a totally different kind of issue ([Figure 11](#)). But the American response

to 9/11 suggested that little had changed, except the roster of 'usual suspects': Afghanistan, Iraq, and Sudan in place of the rogue states of the 1980s, Libya, Syria, and Iran. (Though George W. Bush soon restored the last of these to the list, and added North Korea for good measure, when he identified his 'axis of evil'.) The theory of state sponsorship may be weakly developed but its practical significance is immense: it validates the direct retaliation which has become an established American policy preference. A belief in the deterrent effect of 'smart' munitions (quicker and simpler than intelligence work, certainly) has survived a surprising amount of contrary evidence. Most vitally, it allows the superpower to act unilaterally, untrammelled by the differing policy approaches and concerns of partners (witness, for instance, its brusque—even brutal—treatment of Italy in the aftermath of the *Achille Lauro* hijacking). Even when the USA was, rhetorically at least, most committed to building an international 'coalition against terrorism', in the wake of the 9/11 attacks, it was clearly not prepared to accept any modification of its own agenda.



11. Al-Qaida fighters captured in Afghanistan, transported to Guantanamo Bay, Cuba, facing an uncertain future as suspected ‘illegal combatants’.

Whether in a perfectly controlled, rogue-state-free world terrorism would actually be eliminated may not have been the point in all this. There was at least room for suspicion that the threat of terrorism was being used as a pretext for striking down disagreeable regimes. The central problem that remained unaddressed was the survival potential of ideological/religious movements like al-Qaida, which combine a potent cause with a flexible, one-size-fits-all organization. The ability of its members like Mohammed Atta, the hijacker of

American Airlines Flight 11, to operate for long periods in Germany and even the USA itself, indicates that traditional notions of sanctuary may be even less relevant than they were in the past. State sponsors may be a luxury rather than a necessity for such protean movements.

Cost and effectiveness

If we look for precise evaluation of the effectiveness of antiterrorist policies we find it is surprisingly thin on the ground. Asking in 2014 whether counterterrorism efforts were effective, the *Chicago Policy Review* called this (surely without hyperbole) ‘the billion dollar question’. Their answer was that ‘there is an almost complete absence of evaluation research’ on the issue. Particularly surprising (in the light of Adam Roberts’s plausible suggestion that in democratic states ‘the principles of any counterterrorist campaign are likely to be articulated extensively and scrutinised closely’) is the fact that none of the many official reviews of the British antiterrorist legislation carried out over the last forty years has adduced any concrete evidence on its effectiveness—or apparently seen the need to do so. One such review, by Lord Colville in 1987, noted that during his enquiries he had heard ‘the serious suggestion’ that ‘if all emergency legislation were abolished, the situation would at least be no worse’. Legally, this may be true; psychologically, it may not. Although other jurists have also declared that the ordinary law would be as effective as the special legislation, British governments have sidestepped the issue.

In the infancy of ‘terrorism studies’, Grant Wardlaw posited as an elementary step ‘the development of a comprehensive classification’ of security functions which could inform decision-makers and avoid confusion. Decades later there is still little evidence that this basic step has been taken: while it is easy enough to compile lists of possible antiterrorist measures, together with their fiscal and, so to speak, civil-libertarian costs, there is nothing like a ready-reckoner to evaluate their comparative effectiveness. For instance—a policy-maker might well want to know what, precisely, is the value of identity cards in countering terrorism? They can only guess. And are the objections ‘emotional rather than rational’, as one expert says? How can the long-term costs be computed, if at all? The statistician Bjorn Lomborg suggests that ‘countries maintain massive levels of spending in an area with such huge costs and so few benefits because of politics and extreme risk aversion’.

Democracy against terrorism

There can be no dispute that terrorism is ‘undemocratic’ in that it ignores all conventional processes of representative politics. But does it go further than this? Is it inherently antidemocratic? And are democracies uniquely vulnerable to terrorism? We have already noted that democratic states may be more sensitive to the threat that terrorism is seen to present to public safety. It is a commonplace to see terrorism as an attack on democratic principles; one prolific terrorism expert has even specified that ‘the democratic process is a key target’ for terrorists, though he does not explain exactly how. (It is rare for elections or parliaments to be directly attacked, though the British prime minister held that the Westminster attack in March 2017—the motive for which remains unknown—had parliament as its target.) He seems to be referring to the contempt of both left- and right-wing extremists for liberal democracy—and the probability that if they came to power they would replace it—but this is not quite the same thing.

A study by the Dutch political scientist Alex Schmid identified four key weak points of democracies in face of terrorism: (i) freedom of movement, (ii) freedom of association, (iii) abundance of targets, and (iv) the constraints of the legal system. On this model, the vital features of democratic societies are openness, tolerance, legality, and a high valuation of human life. These features also generate countervailing strengths—free elections and freedom of speech reduce ‘the need for political violence to bring about social change’, or simply to make a case in public, and judicial procedure protects the rights both of individuals and of minority groups. But Schmid seems to see these strengths as limited to minimizing the likelihood of terrorist action, rather than as means of coping with a terrorist campaign once begun. Like many analysts, he seems to be less impressed by the potential resilience of democratic societies under terrorist attack than by their impotence. It is rare to find a suggestion such as Jeffrey Simon’s that ‘equating the threat terrorism poses to individuals with its challenge to Western democratic societies underestimates the ability of Western societies to withstand periodic terrorist campaigns’.

Others have noted that while terrorism’s impact on the legitimacy of governments, and on the delicate trust that exists within a democracy can be considerable, the threat to democracy posed by terrorist acts is less important than the response that such acts evoke. This view has been recently amplified by a political scientist who holds that democratic societies are particularly

‘vulnerable to a form of violence that incites governments to overreact’ and so lose legitimacy; she suggests that the primary danger to legitimacy and stability lies in failure to preserve key values of the democratic order such as individual rights, the rule of law, and limited government. This is in a sense merely to reformulate the basic problem, but Kimbra Krueger makes another important point: that the principle of proportionality—the most effective means of maintaining legitimacy—is difficult to act on because of the tendency of democratic states to be hung up on ‘the peace/war dichotomy’. Terrorism is categorized either as crime or as warfare; democratic institutions are not designed or equipped to deal with the grey area that terrorism occupies. While this may present an acutely difficult dilemma for ‘new democracies’, it may also pose long-term problems for older structures.

One of the central mainstays of democratic culture, not included in Schmid’s list, but a matter of acute concern for many others, is freedom of the press and other media. Even the cautious Grant Wardlaw says that media reporting of terrorist incidents ‘has very damaging effects’, but like most writers has difficulty specifying what these are. It is less often registered that the main contribution of the media is to ‘the perception more than the reality of the terrorist threat’, as Simon notes, and that it tends to widen and dramatize the public notion of the threat. More commonly and intemperately, analysts and politicians have asserted that publicity is the ‘oxygen’ of terrorism. In 1981, Yonah Alexander, referring to the enigmatic Symbionese Liberation Army, held that ‘for several years, the media have continued to magnify the case out of proportion to its real significance’, and in so doing had actually transformed it into an internationally known movement possessing power and posing an insurmountable problem to the authorities. More generally, he held that terrorists make ‘a conscious and deliberate effort to manipulate the media’ and that ‘by providing extensive coverage of incidents the media give the impression that they sympathise with the terrorist cause’.

The ‘oxygen of publicity’ argument implies that control of the media might offer a way of choking off terror altogether. But as British experience with the ‘broadcasting ban’ shows, this is not easy to achieve in a deeply rooted liberal culture. Alexander notes that attempts to impose media blackouts are likely to drive terrorists to escalate their violence, and that ‘an unjustifiable limitation of free media will ultimately result in the victory of terrorism’; he advocates self-restraint and voluntary cooperation with the criminal justice system, but also

says that ‘the determination of a proper role for the media should not be left to their judgement alone’. Whose, then? This is the difficulty.

Freedom or security?

One reason why accounts such as Schmid’s stress—to the point perhaps of exaggeration—the weakness of democratic societies, is that they focus not on the expression of public will (in Isaiah Berlin’s famous distinction, ‘positive freedom’) but on the guarantees of individual liberty (‘negative freedom’) which are so characteristic of Western liberalism: freedom of movement, assembly, speech; protection against arbitrary government; equality before the law—in Anglo-Saxon terms, due process. Within the composite of liberal democracy, it seems to be liberalism rather than democracy that is the perceived source of vulnerability to internal violence. The crucial assumptions of the civic culture—toleration, moderation, reasonableness, non-violence—form the conditions for the exercise of ‘civil liberties’. Terrorism, however defined, is certainly a calculated assault on the culture of reasonableness.

It is also, surely, liberalism rather than democracy that is threatened, not so much by violence itself as by the state’s reactions to it—often, as Schmid notes, propelled by popular demands. While he recognizes that ‘the recourse to unlawful methods of repression’ will ultimately undermine the government’s legitimacy, he does not address the possibility that antiterrorist measures may fundamentally corrode or subvert the constitutions which they aim to defend. It is here that the problem of defining terrorism and evaluating the threat it poses becomes acute; the very imprecision of the concept and its operation leads to loose definition of the powers taken to oppose it, while (as in war) the blanket of national security smothers the interrogative powers on which public accountability depends. Without the effective interrogation of legislation and executive action there is no liberal democracy.

The vital issue is the point at which the liberal legal system becomes unable to cope with organized violence. This issue was identified with rare clarity in Lord Gardiner’s judicial review of Britain’s antiterrorist measures in 1975:

when normal conditions give way to grave disorder and lawlessness, with extensive terrorism causing widespread loss of life and limb ... the courts cannot be expected to maintain peace and

order in the community if they have to act alone. The very safeguards of the law then become the means by which it may be circumvented.

Lack of information, and the intimidation of witnesses and jurors, can paralyse the legal system. The response may be to create special courts, special laws, and special forces, all of which may over time represent a shift towards a 'strong state' or even a 'garrison state'. Such a course has in the past been assumed to be deeply alien to British traditions, but it may be that during the 20th century there has been some movement in this direction.

We need to keep in mind that special laws, the further they depart from ordinary law, carry corrosive possibilities for even a robust and long-established liberal tradition; the risk of 'normalizing the extraordinary', and eroding hard-won safeguards—especially in the absence of any clear procedures for assessing whether the measures are proportionate to the danger. Just how far terrorism could threaten the survival of liberal-democratic principles became clear with Britain's 1988 'broadcasting ban', preventing the voices of Sinn Féin leaders from being heard. This was justified by two arguments: the apparently technical, though unproven, assertion that terrorists lived on 'the oxygen of publicity'; and the wholly illiberal assertion that the right of the victims of terrorism to be shielded from the sound of terrorists' voices should outweigh the right of other citizens to information. This particular experiment was widely mocked, and eventually undermined by a combination of its evident ineffectiveness and the need to bring the banned leaders back into the political 'peace process'; but it remains a disturbing illustration of the fragility of even entrenched liberal assumptions.

Since 9/11 the level of threat to due process has risen along with the amplification of public alarm. The US Patriot Act (a laborious acronym of 'Providing Appropriate Tools Required to Intercept and Obstruct Terrorism') removed many legal restrictions on internal surveillance. The USA's treatment of the 'illegal combatants' held at Guantanamo has been profoundly disturbing to many Americans and many more in the world at large. The torture of terrorist suspects has even been publicly advocated by an American law professor—a proposition scarcely imaginable in the West in modern times. Not, of course, that torture has not been used by modern Western states, but there has been a prevailing belief that (quite apart from moral objections) the intelligence it secures is inherently unreliable. Certainly, Western jurisprudence rests on the

inadmissibility of evidence so extracted. Even less spectacular departures from the conventions of due process, such as the British device of ‘control orders’ for terrorist suspects who could not be convicted in open court, may have had the effect, as Lord Macdonald put it in January 2011, of making British institutions a ‘symbol of hypocrisy’ to the outside world.

So far, the question whether civil liberties are compatible with antiterrorist action remains unanswered. Ronald Crelinsten’s thoughtful analysis ends with an extremely demanding agenda: ‘security intelligence agencies must watch out for threats ... within the context of the value our democratic societies place on individual rights’. At the heart of the issue remains the problem of information: most of the special antiterrorist powers, such as detention or deportation of suspects, depend on precise, accurate information if they are not to be abused. Can such accuracy be assured without constructing a surveillance system so comprehensive as to represent a danger to individual rights in itself? It has been cogently argued that secret intelligence collection poses fewer problems for civil liberties than has traditionally been claimed, but only on the assumption that governments can establish a public consensus, overcoming what one intelligence analyst calls the pervasive ‘lack of clarity over the nature of the threat which society faces, the purposes for which intelligence is being collected, and the uses to which it is being put’.

This would seem to require an open and probably complicated public debate. Something like this did indeed begin to happen in Britain, despite the persistent efforts of the Labour government to smother public criticism of its antiterrorist legislation after 9/11. In July 2010, Lord Macdonald was given ‘independent oversight’ of a major official review of British antiterrorism measures, which itself indicated a new climate of caution about the consequences of overreaction. Its terms of reference were to ‘look at the issue of security and civil liberties, and where possible to provide a correction in favour of liberty’. Macdonald himself publicly declared that Britain had ‘over-reacted’ after 9/11, and that ‘we saw some powers, some laws which did go too far’. Though some of the most-criticized (and possibly effective) elements of ‘control orders’—notably the police power to forcibly relocate suspects—were removed, their replacement by ‘Terrorism Prevention Investigation Measures’ struck many observers as mainly cosmetic. And in the end, no major public debate was triggered by the review.

The USA provided a demonstration that public consensus can itself overwhelm

definition and debate: while a handful of academic lawyers might warn that ‘the rights of terrorist suspects are our rights too’, mainstream American opinion appeared contemptuous of such liberal scruples. The Patriot Act had broad public approval. As Crelinsten soberly remarks, ‘Most people will sacrifice their freedom for security if they feel threatened enough.’

How terrorism ends

It is unlikely that terrorism as such will ever end. But most individual terrorist campaigns so far have indeed come to an end, and the way they have ended is instructive. A Rand Corporation analysis of 648 terrorist groups operating between 1968 and 2006 found that 10 per cent had achieved ‘victory’, while a slightly smaller proportion had been crushed by direct military force. The two biggest reasons for termination were police investigation (40 per cent) and some kind of political settlement (43 per cent). Around 62 per cent of all terrorist groups had disappeared, but only 32 per cent of religious groups had done so. None of them had achieved ‘victory’. It has become widely accepted that the ‘global war on terror’ launched in 2001 with the objective of defeating ‘every terrorist group of global reach’ was both misconceived and mismanaged. This belated realization is in itself somewhat depressing, and the fact that—to judge by the official threat levels declared by Britain and the USA—the whole decade of counterterrorist action has had no measurable effect, might be even more so. But these histories should help to sustain belief that terrorism is no more likely now than it was a century ago to bring about the destruction of Western civilization.